

Court No. - 29

Case :- WRIT - C No. - 11641 of 2011

Petitioner :- Satya Pal Singh

Respondent :- State Of U.P. And Others

Petitioner Counsel :- S.K. Mishra

Respondent Counsel :- C.S.C., Rajesh Tripathi

Hon'ble Sunil Ambwani, J.

Hon'ble Mrs. Jayashree Tiwari, J.

Put up on 1.3.2011, to enable Sri Rajesh Tripathi, counsel for respondent Nos. 2 and 3, to seek instructions, as to whether any provisional or final assessment has been issued, before issuing the demand notice.

Order Date :- 25.2.2011

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Court No. - 35

Case :- WRIT - C No. - 11641 of 2011

Petitioner :- Satya Pal Singh

Respondent :- State Of U.P. And Others

Petitioner Counsel :- S.K. Mishra

Respondent Counsel :- C.S.C., Rajesh Tripathi

Hon'ble Satya Poot Mehrotra, J.

Hon'ble Pankaj Mithal, J.

As prayed, put up before the appropriate Bench on 4.3.2011.

Order Date :- 1.3.2011

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Court No. - 36

Case :- WRIT - C No. - 11641 of 2011

Petitioner :- Satya Pal Singh

Respondent :- State Of U.P. And Others

Petitioner Counsel :- S.K. Mishra

Respondent Counsel :- C.S.C., Rajesh Tripathi

Hon'ble Ashok Bhushan,J.

Hon'ble Shyam Shankar Tiwari,J.

List it in the cause list.

Order Date :- 4.3.2011

SB

Court No. - 35

Case :- WRIT - C No. - 11641 of 2011

Petitioner :- Satya Pal Singh

Respondent :- State Of U.P. And Others

Petitioner Counsel :- S.K. Mishra

Respondent Counsel :- C.S.C.,Rajesh Tripathi

Hon'ble Sunil Ambwani,J.

Hon'ble Kashi Nath Pandey,J.

As prayed list on 7.4.2011.

Order Date :- 29.3.2011

KCS

Court No. - 36

Case :- WRIT - C No. - 11641 of 2011

Petitioner :- Satya Pal Singh

Respondent :- State Of U.P. And Others

Petitioner Counsel :- S.K. Mishra

Respondent Counsel :- C.S.C.,Rajesh Tripathi

Hon'ble Satya Poot Mehrotra,J.

Hon'ble Rajesh Chandra,J.

On oral prayer made by Sri S.K. Mishra, learned counsel for the petitioner, he is permitted to implead Collector, Etah as party -respondent no.4.in the Writ Petition as well as in the Stay Application

Necessary impleadment will be made in the Writ Petition as well as in the Stay Application during the course of the day.

It is submitted by Sri S.K. Mishra, learned counsel for the petitioner that no Provisional Assessment was ever communicated to the petitioner, and the petitioner was not given any opportunity to file objections to the Provisional Assessment , and without complying with the provisions contained in the U.P. Electricity Supply Code, 2005, Recovery Certificate has been sent by the respondent no. 3 to the Collector, Etah (respondent no.4).

By the order dated 25.2.2011, time was granted to the learned counsel for the respondent nos. 2 and 3 to seek instructions as to whether any Provisional or Final Assessment had been issued.

Sri Raj Shekhar holding brief for Sri Rajesh Tripathi , learned counsel for the respondent nos. 2 and 3 states that no instructions have so far been received by Sri Tripathi in this matter.

Issue notice pending admission.

Notice on behalf of the respondent nos. 1 and 4 has been accepted by the learned Standing Counsel.

Notice on behalf of the respondent nos.2 and 3 has been accepted by Sri Rajesh Tripathi, learned counsel for the said respondents.

No notice ,therefore, need be sent to the respondents.

Counter Affidavit on behalf of the respondents may be filed within four weeks.

Rejoinder Affidavit may be filed by the next date fixed in the matter.

List this case on 12.5.2011.

Heard on the question of grant of interim relief.

Having regard to the facts and circumstances of the case and having considered the submissions made by the learned counsel for the parties, it is provided that recovery proceedings against the petitioner, pursuant to the Recovery Certificate (Annexure No. 4 to the Writ Petition), will remain stayed till the next date of listing provided within two weeks from today, the petitioner deposits a sum of Rs. 20,000/- with the respondent no.3. The deposit so made by the petitioner will be without prejudice to the rights and contentions of the parties involved in the present Writ Petition.

In the event of failure on the part of the petitioner in making the deposit, as directed above, this order will stand automatically vacated.

Order Date :- 7.4.2011

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Civil Misc. Writ Petition No. 11641 Of 2011
Satyapal Singh Vs. State of U.P. and others

Hon'ble Yatindra Singh, J,
Hon'ble Kashi Nath Pandey, J

1. This writ petition is against the recovery proceeding for payment of electricity dues.
2. We have heard counsel for the petitioner and Sri Rajesh Tripathi as well as Standing counsel for the respondents.
3. The petitioner, if he is so advised, may file a representation before Executive Engineer, Electricity Distribution Division, Etah (respondent no. 3). In case any representation is filed, it may be decided by concerned respondent by speaking order, if possible, within one month from the date of receipt of the representation. The petitioner will file a certified copy of this order, other necessary documents and a duly stamped self-addressed envelop along with his representation. The concerned respondent after taking decision on the representation will communicate the same to the petitioner.
4. With these observations, the writ petition is disposed of.

Date 20.7.2011

K.C. Singh